

UPSC GS-II POLITY

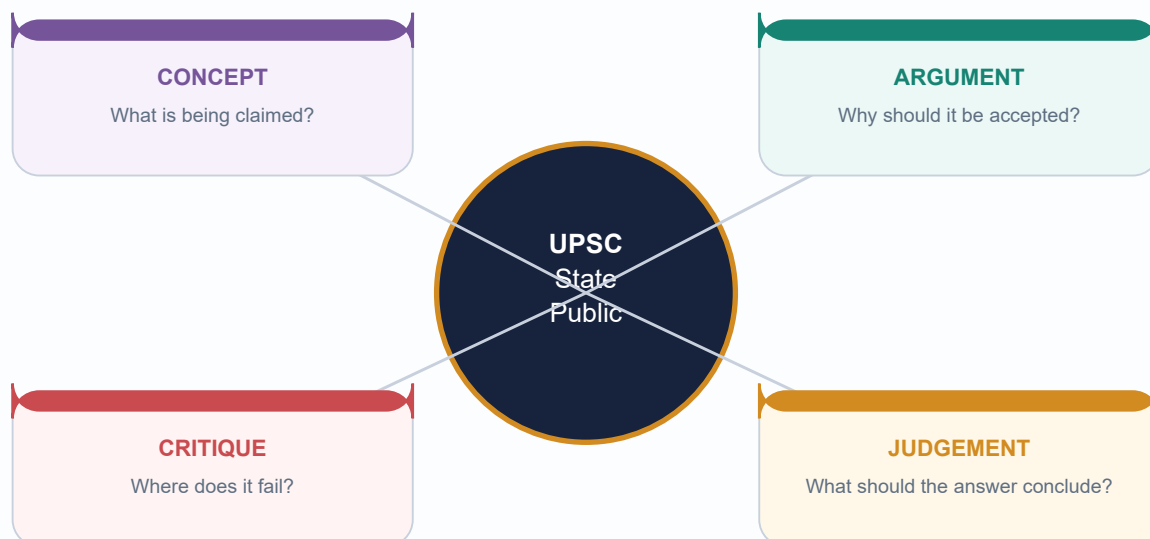
# UPSC and State Public Service Commissions (Articles 315-323)

Integrated Basic + Advanced Course

11 deep-learning modules | Articles 315 to 323, Part XIV of the Constitution

Institutional architecture, appointments/removal, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (M. Laxmikant, Indian Polity, Ch. 43-44)



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. Part XIV — The UPSC's Constitutional Architecture

GS-II Polity -  
Public Service  
Commissions

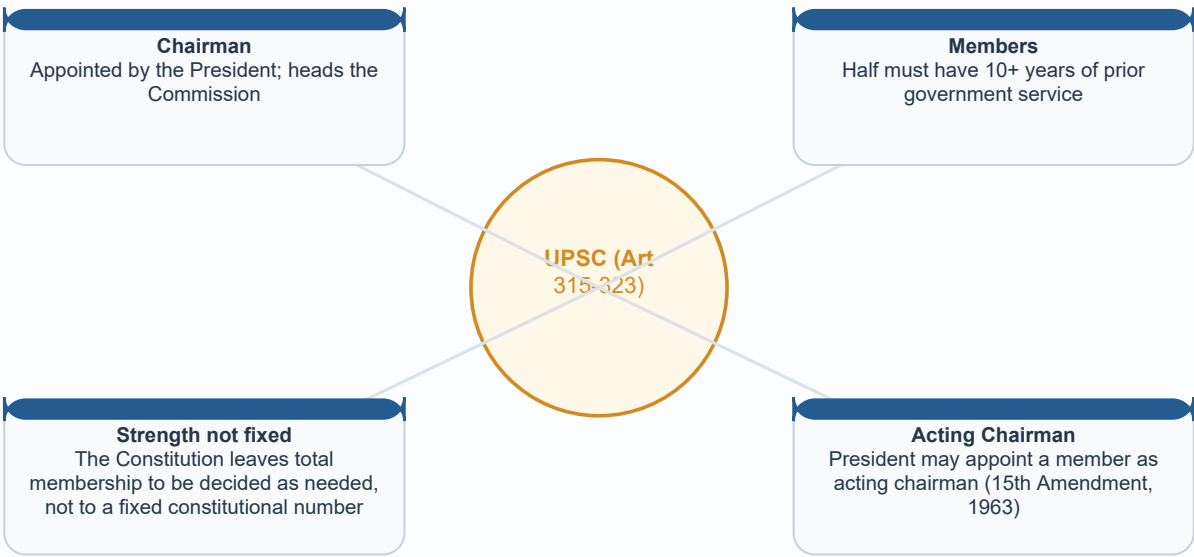
NEWS TRIGGER

Debates on UPSC candidate-verification integrity and lateral entry into the bureaucracy both return to the same basic question: what kind of body is the UPSC, and how is it composed?

INTRO & ORIGIN

Articles 315 to 323, in Part XIV of the Constitution, directly create the Union Public Service Commission (UPSC) as an independent constitutional body — India's central recruiting agency for All-India and Central services.

UPSC'S CONSTITUTIONAL ARCHITECTURE



KEY DATA

| Feature         | Detail                                                                                                                             |
|-----------------|------------------------------------------------------------------------------------------------------------------------------------|
| Members         | A Chairman and members appointed by the President; the total strength is not fixed by the Constitution                             |
| Qualification   | None specified, but half the members must have held office for 10 or more years under the Central Government or a State Government |
| Term            | 6 years or 65 years of age, whichever is earlier                                                                                   |
| Acting Chairman | The President may appoint a member as acting chairman, a provision added by the 15th Amendment (1963)                              |

**STATIC THEORY**

- The UPSC is directly created by the Constitution itself, unlike statutory bodies created by an ordinary Act of Parliament.
- The Constitution deliberately leaves the Commission's total strength unfixed; any past usual range in practice should not be treated as a constitutional or permanent composition.
- The half-members-with-10-years rule is meant to blend serving-officer experience with outside membership on the Commission.

**MEMORY HOOK**

**STRENGTH NOT FIXED | HALF THE MEMBERS NEED 10+ YEARS OF SERVICE | 6 YEARS OR 65, WHICHEVER EARLIER**

**MUST-KNOW FACTS**

1. The UPSC's Chairman and members are appointed by the President.
2. The Constitution does not fix the UPSC's total strength.
3. At least half the members must have held office for 10 or more years under the Centre or a state.
4. The term of office is 6 years or 65 years of age, whichever is earlier.

**UPSC TRAPS**

**WRONG:** The Constitution fixes the UPSC's membership at a specific number.

**CORRECT:** The strength is not fixed by the Constitution; a past usual practice is not a constitutional requirement.

**MAINS ANGLE**

*Use the unfixed-strength and half-members-experience design to argue that the UPSC was structured for functional flexibility rather than a rigid constitutional headcount.*

**STUDY LINK**

Polity -> UPSC and SPSC -> Removal and independence modules

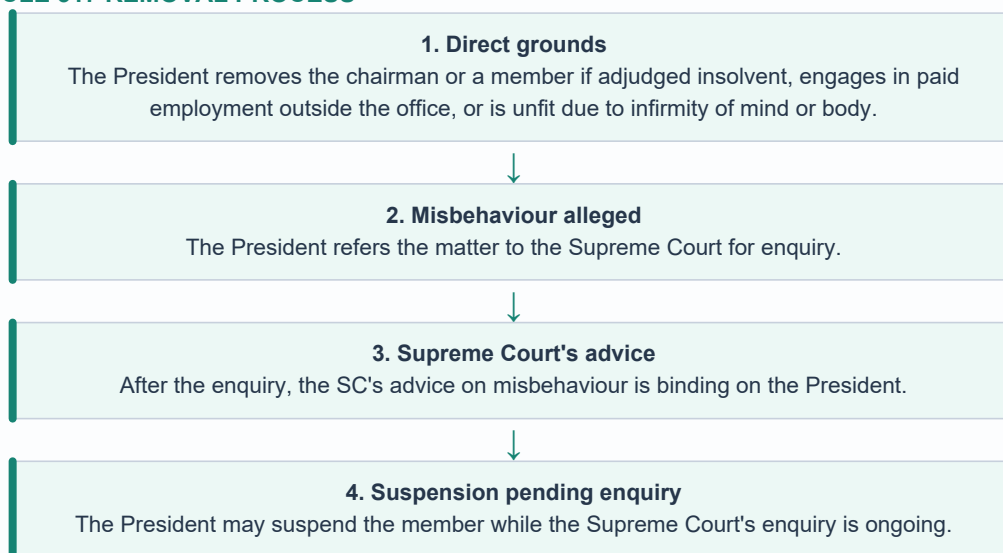
**HIGH****2. Removal Under Article 317 — Grounds and Process**GS-II Polity -  
Removal**NEWS TRIGGER**

Whenever a UPSC or SPSC member's conduct is questioned, the removal mechanism under Article 317 — quite different from the Election Commission's — becomes directly relevant.

**INTRO & ORIGIN**

Article 317 sets out both direct grounds of removal and a special procedure for the more serious ground of misbehaviour, keeping the President central to the process throughout.

## THE ARTICLE 317 REMOVAL PROCESS



## STATIC THEORY

- Three grounds — insolvency, outside paid employment, and infirmity — allow direct removal by the President without a Supreme Court reference.
- Misbehaviour is treated differently: it requires a Supreme Court enquiry, and the SC's advice after that enquiry binds the President.
- This Supreme Court-enquiry route for UPSC/SPSC misbehaviour is structurally different from the Election Commission's special-majority parliamentary-resolution mechanism for the CEC — the two independent bodies use two different removal safeguards.

## MEMORY HOOK

**DIRECT GROUNDS = INSOLVENCY, OUTSIDE JOB, INFIRMITY | MISBEHAVIOUR = SC ENQUIRY, BINDING ADVICE**

## MUST-KNOW FACTS

1. The President can remove a UPSC/SPSC chairman or member directly for insolvency, outside paid employment, or infirmity of mind/body.
2. For misbehaviour, the President refers the matter to the Supreme Court, whose advice after enquiry is binding.
3. The President may suspend the member while the Supreme Court's enquiry is pending.

## UPSC TRAPS

**WRONG:** UPSC/SPSC members are removed through a special-majority parliamentary resolution, like the CEC.

**CORRECT:** They are removed through a Supreme Court enquiry process under Article 317, a different mechanism from the Election Commission's parliamentary-resolution route.

## MAINS ANGLE

*Compare the Supreme Court-enquiry removal mechanism for UPSC/SPSC members with the special-majority parliamentary-resolution mechanism for the CEC, and assess which offers stronger institutional independence.*

## STUDY LINK

Polity -> Election Commission -> Removal safeguards comparison

HIGH

### 3. Independence Safeguards Beyond Removal

GS-II Polity -  
Independence

#### NEWS TRIGGER

Post-retirement employment restrictions on UPSC chairmen and members are the safeguard most frequently tested alongside removal protection.

#### INTRO & ORIGIN

Beyond the removal process itself, several structural safeguards protect the UPSC's independence throughout and after a member's term.

#### UPSC INDEPENDENCE SAFEGUARDS

##### UPSC Independence

|                                                                                                                    |                                                                                                                                                                                     |
|--------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Security of tenure</b><br>Removed only in the constitutional manner set out in Article 317                      | <b>Protected service conditions</b><br>Cannot be varied to the member's disadvantage after appointment                                                                              |
| <b>Charged expenses</b><br>Salaries and pensions are charged on the Consolidated Fund of India, not voted annually | <b>Post-retirement bar</b><br>Chairman: no further Central/State government employment.<br>Member: eligible only for UPSC or an SPSC chairmanship, and no reappointment/second term |

#### STATIC THEORY

- Charging expenses on the Consolidated Fund of India removes UPSC's salary and pension from the annual voting process in Parliament.
- The bar on further employment for the chairman, and the narrow onward eligibility for members (UPSC or SPSC chairmanship only), is meant to prevent post-retirement inducements from influencing decisions taken while in office.
- No member or chairman gets a second term in the same office, closing off any incentive to seek reappointment through favourable conduct.

#### MEMORY HOOK

**CHAIRMAN: NO FURTHER JOB | MEMBER: ONLY UPSC/SPSC CHAIRMANSHIP | NO SECOND TERM, EVER**

#### MUST-KNOW FACTS

1. UPSC expenses (salaries and pensions) are charged on the Consolidated Fund of India.
2. A former UPSC Chairman cannot take up any further Central or State government employment.
3. A former UPSC member is eligible only to become the UPSC chairman or an SPSC chairman — nothing else.
4. There is no reappointment to the same office for the UPSC chairman or a member.

#### UPSC TRAPS

**WRONG:** A UPSC member can take up any government job after completing the term.

**CORRECT:** A member is eligible only for a UPSC or SPSC chairmanship afterwards, nothing else.

#### MAINS ANGLE

*Assess whether charging UPSC's expenses on the Consolidated Fund of India and restricting post-retirement employment are sufficient to guarantee its independence.*

#### STUDY LINK

Polity -> CAG -> Comparison of Consolidated Fund charged expenditure

HIGH

## 4. The A.R. Kidwai Precedent — Governor Is Not 'Employment'

GS-II Polity -  
Case Law

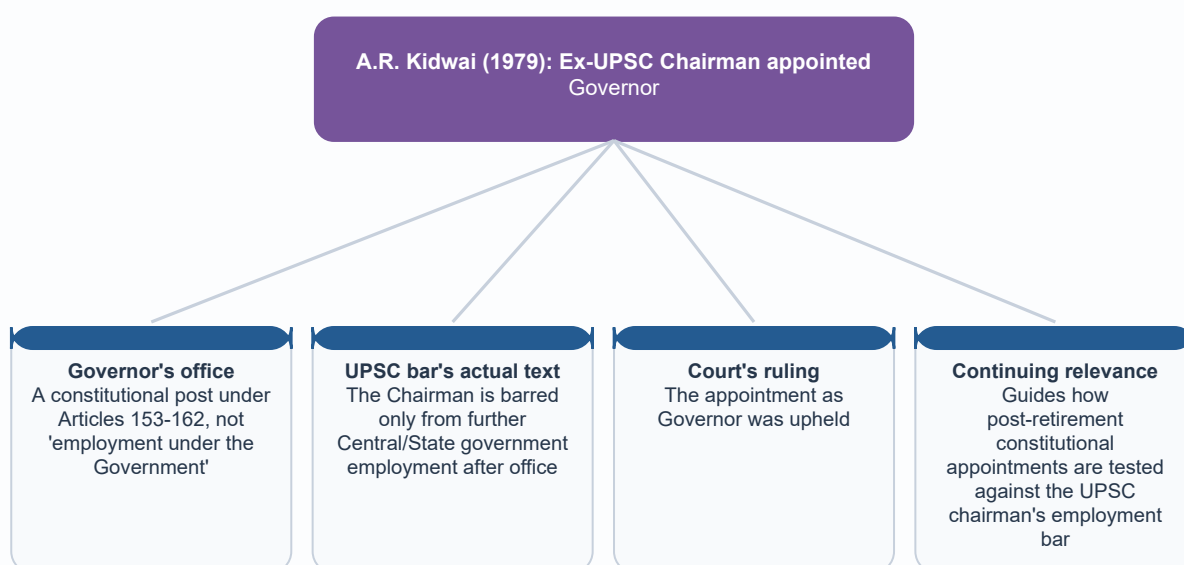
### NEWS TRIGGER

Whenever a former UPSC chairman is appointed to a further constitutional post, the A.R. Kidwai precedent on what counts as barred 'employment' becomes directly relevant.

### INTRO & ORIGIN

In the A.R. Kidwai case (1979), a former UPSC chairman's appointment as a state Governor was challenged and upheld — the Court treated the Governor's office as a constitutional post, not 'employment under the Government'.

### IS GOVERNORSHIP BARRED 'EMPLOYMENT'?



### STATIC THEORY

- The case law distinction turns on whether a post is 'employment under the Government' — an executive service post — or a distinct constitutional office such as Governor.
- Because Governor is a constitutional office created directly by the Constitution, it falls outside the specific bar on further government employment placed on a former UPSC chairman.
- This precedent is the standard reference point whenever the post-retirement bar on UPSC chairmen is tested against a constitutional (rather than executive-service) appointment.

### MEMORY HOOK

**GOVERNOR = CONSTITUTIONAL OFFICE, NOT 'EMPLOYMENT UNDER GOVERNMENT' — A.R. KIDWAI (1979)**

**MUST-KNOW FACTS**

1. In A.R. Kidwai (1979), a former UPSC chairman's appointment as Governor was upheld.
2. The Court treated the Governor's office as a constitutional post, not employment under the Government.

**UPSC TRAPS**

**WRONG:** A former UPSC chairman can never hold any further public office.

**CORRECT:** The bar is on further Central/State government employment; a constitutional office such as Governor is not covered, per A.R. Kidwai (1979).

**MAINS ANGLE**

Use A.R. Kidwai (1979) to illustrate how courts distinguish 'employment under the Government' from a distinct constitutional office when testing post-retirement bars.

**STUDY LINK**

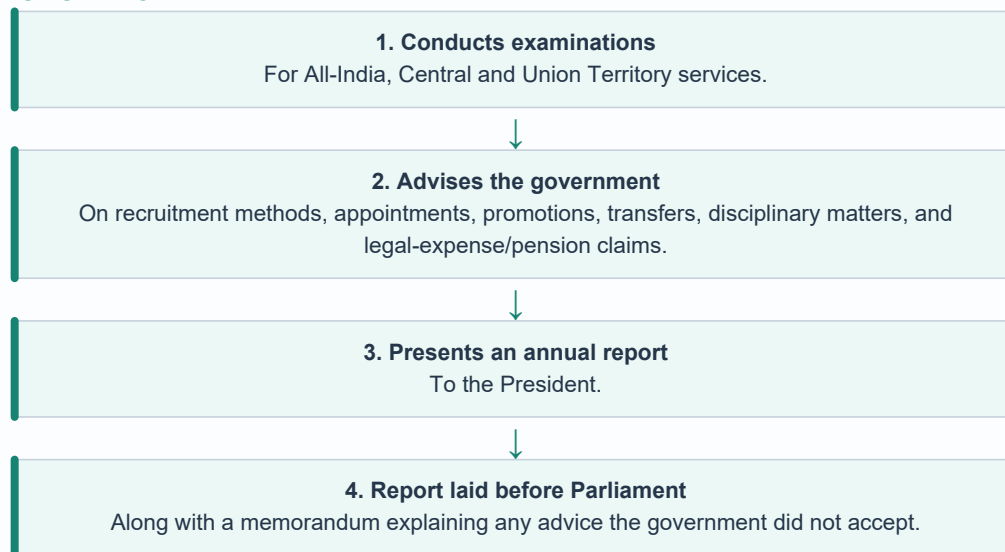
Polity -> Governor and CM -> Governor's constitutional status

**HIGH****5. Functions of the UPSC — Recruitment, Advice and Reporting**GS-II Polity -  
Functions**NEWS TRIGGER**

The Puja Khedkar case (2024) placed UPSC's candidate-verification function and its advisory, non-binding character squarely in public debate.

**INTRO & ORIGIN**

The UPSC's core function is recruitment for All-India, Central and Union Territory services, supported by an advisory role on personnel matters and an annual reporting obligation to the President.

**THE UPSC'S FUNCTIONAL CYCLE****STATIC THEORY**

- UPSC's advice is advisory and directory, not mandatory: the Supreme Court has held that failure to consult the UPSC does not by itself invalidate a government decision.
- Selection by the UPSC confers no enforceable right to the post; the recommendation is a step in the process, not a guarantee of appointment.
- The annual report's memorandum on rejected advice is the main accountability mechanism that keeps the government's departures from UPSC advice visible to Parliament.

**MEMORY HOOK**

**UPSC ADVICE = DIRECTORY, NOT MANDATORY | SELECTION GIVES NO RIGHT TO THE POST**

**MUST-KNOW FACTS**

1. UPSC conducts examinations for All-India, Central and Union Territory services.
2. Its advice on recruitment, promotions, transfers and disciplinary matters is advisory, not binding.
3. It presents an annual report to the President, laid before Parliament with a memorandum on any rejected advice.
4. A candidate's selection by the UPSC does not create an enforceable right to the post.

**UPSC TRAPS**

**WRONG:** The government must always follow the UPSC's advice.

**CORRECT:** UPSC's advice is advisory/directory; failure to consult it does not automatically invalidate a government decision.

**MAINS ANGLE**

*"The UPSC is only as strong as the merit system it guards." Examine its recruitment and advisory functions and their practical, non-binding limits.*

**STUDY LINK**

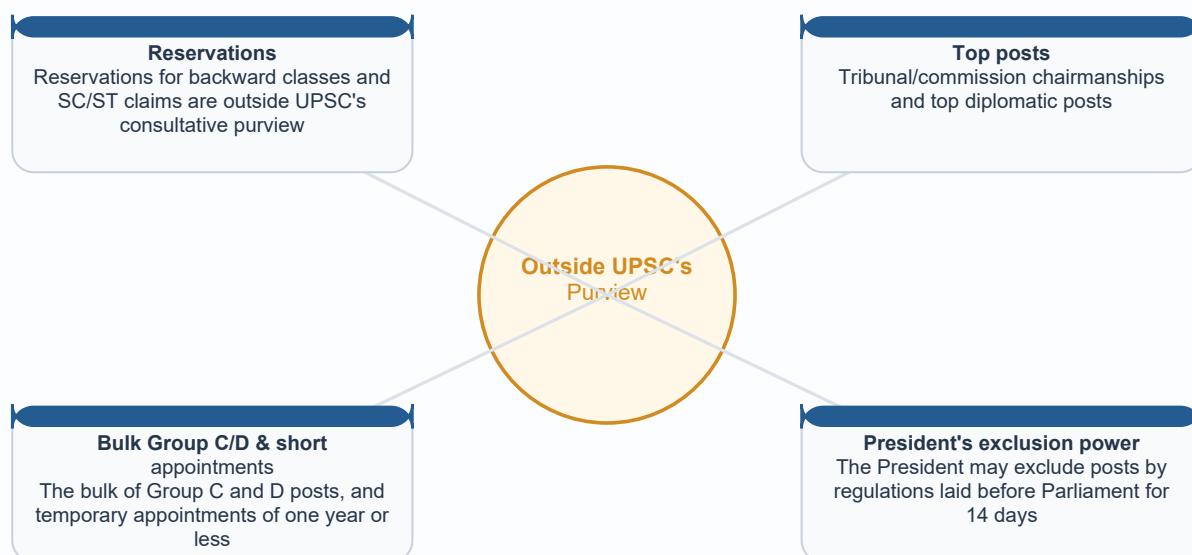
Polity -> Public Services -> Advisory bodies and binding effect

**HIGH****6. Limitations — What Falls Outside UPSC's Purview**GS-II Polity -  
Limitations**NEWS TRIGGER**

Lateral entry into the bureaucracy is often debated precisely because it touches categories of appointment that already sit outside the UPSC's normal consultation requirement.

**INTRO & ORIGIN**

The UPSC's watch-dog role is deliberately bounded; several categories of appointment and decision fall outside its required consultation.

**MATTERS OUTSIDE UPSC CONSULTATION**

**STATIC THEORY**

- These carve-outs mean the UPSC's recruiting mandate, though central, is not universal across every government appointment.
- Cadre management, pay and training are handled by the Department of Personnel and Training (DoPT), the central personnel agency — the UPSC only recruits.
- On disciplinary matters, the UPSC's constitutional status gives it a stronger institutional standing than the Central Vigilance Commission, which has been a statutory body only since 2003.

**MEMORY HOOK**

**OUTSIDE UPSC = RESERVATIONS, TOP POSTS, BULK C/D, SHORT-TERM POSTS | CADRE/PAY = DoPT, NOT UPSC**

**MUST-KNOW FACTS**

1. Reservations for backward classes and SC/ST claims are outside UPSC's consultative purview.
2. Appointments to tribunal/commission chairmanships, top diplomatic posts, and most Group C and D posts do not require UPSC consultation.
3. Cadre management, pay and training are handled by the DoPT, not the UPSC.
4. The President may exclude posts from UPSC consultation by regulations laid before Parliament for 14 days.

**UPSC TRAPS**

**WRONG:** The UPSC is consulted on reservations and SC/ST claims.

**CORRECT:** These matters are outside UPSC's purview.

**WRONG:** The UPSC manages cadre allocation, pay and training of civil servants.

**CORRECT:** That is the Department of Personnel and Training's role; UPSC's function is recruitment.

**MAINS ANGLE**

*Lateral entry vs UPSC recruitment: does bypassing UPSC consultation for specified posts dilute or strengthen the merit system?*

**STUDY LINK**

Polity -> CVC and CBI -> Constitutional vs statutory bodies

**HIGH****7. UPSC vs SPSC vs JSPSC — Comparative Constitutional Design**

GS-II Polity -  
Federal  
Comparison

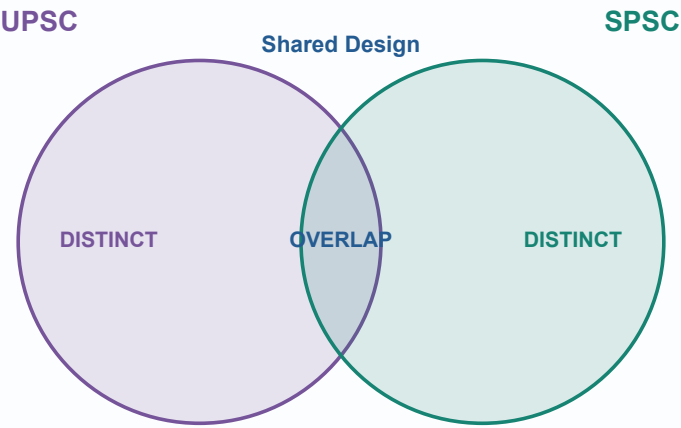
**NEWS TRIGGER**

Vacancies and delays across several State Public Service Commissions have renewed demands for greater autonomy and transparency at the state level.

**INTRO & ORIGIN**

Each state has its own State Public Service Commission (SPSC), built on the same constitutional template as the UPSC but with one deliberately federal twist in its appointment and removal design.

UPSC VS SPSC



| UPSC                                                                                                                                                | Shared Design                                                                                                                                                                                                       | SPSC                                                                                                                                                                  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"><li>• Appointed by the President</li><li>• Removed by the President</li><li>• Term: 6 years or 65 years</li></ul> | <ul style="list-style-type: none"><li>• Directly created by the Constitution</li><li>• Half the members need 10+ years of prior government service</li><li>• Removal only through the Article 317 process</li></ul> | <ul style="list-style-type: none"><li>• Appointed by the Governor</li><li>• Removed by the President (not the Governor)</li><li>• Term: 6 years or 62 years</li></ul> |

The SPSC's chairman/member is appointed by the Governor but removable only by the President — a state functionary removable only by the Union.

KEY DATA

| Point                       | UPSC                              | SPSC                                                          |
|-----------------------------|-----------------------------------|---------------------------------------------------------------|
| Created by                  | Constitution                      | Constitution                                                  |
| Appointed by                | President                         | Governor                                                      |
| Removed by                  | President                         | President (not the Governor)                                  |
| Member's onward eligibility | UPSC chairman or an SPSC chairman | UPSC member/chairman, or chairman of the same or another SPSC |
| Half-members-10-year rule   | Yes                               | Yes                                                           |
| Term                        | 6 years or 65 years               | 6 years or 62 years                                           |

STATIC THEORY

- The key trap in this comparison is the SPSC's appointment-removal split: the Governor appoints the chairman/members, but only the President can remove them — a deliberate federal check.
- The SPSC retirement age (62) is lower than the UPSC's (65), even though both share the same 6-year term ceiling.
- Both bodies are directly constitutional, unlike the JSPSC, which is a statutory creation.

MEMORY HOOK

SPSC: GOVERNOR APPOINTS, PRESIDENT REMOVES | UPSC 65 vs SPSC 62

**MUST-KNOW FACTS**

1. SPSC chairman and members are appointed by the Governor.
2. They are removed only by the President, never by the Governor.
3. The SPSC's retirement age is 62, compared with 65 for the UPSC.

**UPSC TRAPS**

**WRONG:** SPSC members are removed by the Governor.

**CORRECT:** They are removed only by the President.

**WRONG:** The SPSC's retirement age is also 65, same as the UPSC.

**CORRECT:** It is 62 for the SPSC, 65 for the UPSC.

**MAINS ANGLE**

*SPSC members are appointed by the Governor but removable only by the President — assess this federal design and what it reveals about the balance of Union-State control over state institutions.*

**STUDY LINK**

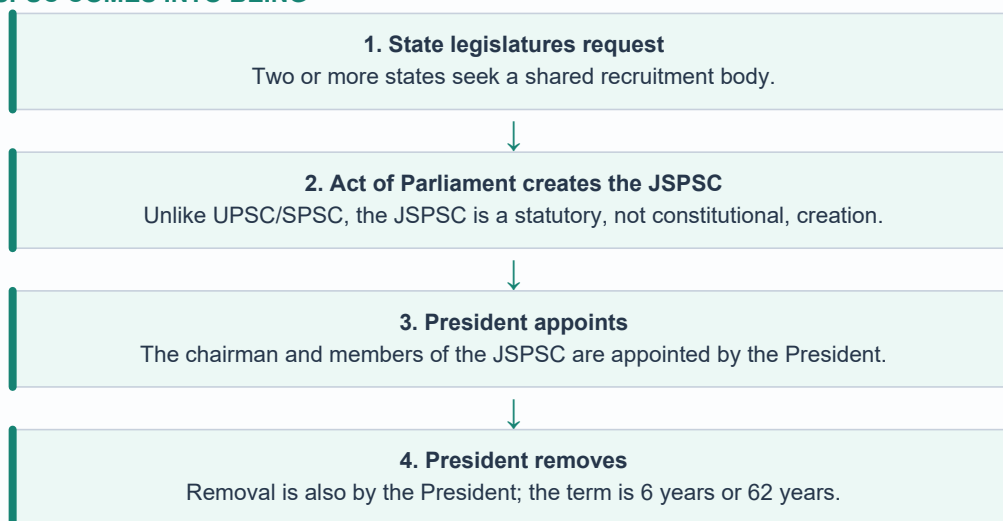
Polity -> Centre-State Relations -> Union control over state institutions

**HIGH****8. Joint State Public Service Commission (JSPSC)**GS-II Polity -  
JSPSC**NEWS TRIGGER**

Smaller or resource-constrained states occasionally revive the idea of pooling recruitment machinery through a Joint SPSC or by directly requesting UPSC's assistance.

**INTRO & ORIGIN**

For two or more states, a Joint State Public Service Commission (JSPSC) can be created — but unlike the UPSC and SPSC, it is not a constitutional body in its own right.

**HOW A JSPSC COMES INTO BEING****STATIC THEORY**

- The JSPSC's statutory (not constitutional) origin is the single most important distinction from the UPSC and SPSC.
- Its chairman and members share the SPSC's term ceiling of 6 years or 62 years, and are both appointed and removed by the President, unlike the SPSC's Governor-appointment / President-removal split.
- Separately, the UPSC itself can serve a state's needs directly — on the Governor's request, with the President's approval — without a JSPSC being created at all.

**MEMORY HOOK**

**JSPSC = STATUTORY (ACT OF PARLIAMENT), NOT CONSTITUTIONAL | PRESIDENT APPOINTS AND REMOVES**

**MUST-KNOW FACTS**

1. A JSPSC is created by an Act of Parliament, on the request of the state legislatures concerned.
2. The JSPSC's chairman and members are both appointed and removed by the President.
3. The JSPSC's term is 6 years or 62 years of age, whichever is earlier.
4. The UPSC can serve a state's needs on the Governor's request, with the President's approval.

**UPSC TRAPS**

**WRONG:** A JSPSC is a constitutional body like the UPSC and SPSC.

**CORRECT:** It is a statutory body, created by an Act of Parliament.

**MAINS ANGLE**

*Discuss whether a Joint State Public Service Commission is an underused solution for smaller states facing recruitment capacity constraints.*

**STUDY LINK**

Polity -> Centre-State Relations -> Statutory vs constitutional bodies

**HIGH****9. Verified Current-Affairs Anchors**

**GS-II Polity -**  
Current Affairs  
Link

**NEWS TRIGGER**

The Puja Khedkar case and the lateral-entry debate are the two current threads most directly connected to the UPSC's constitutional role as the watch-dog of the merit system.

**INTRO & ORIGIN**

These current-affairs anchors are drawn from the verified Polity knowledge base and should be revised alongside the static institutional design, not as a separate silo.

**STATIC THEORY**

- Current-affairs items on this topic almost always test whether the UPSC's constitutional safeguards are functioning as intended in a specific, live controversy.

**MEMORY HOOK**

**EVERY UPSC/SPSC NEWS ITEM MAPS BACK TO: MERIT-SYSTEM INTEGRITY OR RECRUITMENT SCOPE**

**MUST-KNOW FACTS**

1. The Puja Khedkar case (2024) brought UPSC candidate-verification and integrity into sharp public focus.
2. Lateral entry into the bureaucracy remains a live debate about the merit system.

**UPSC TRAPS**

**WRONG:** The Puja Khedkar case concerned UPSC's advisory powers over disciplinary matters.

**CORRECT:** It concerned candidate-verification integrity in the recruitment process, not UPSC's advisory function.

STATIC CONCEPT TO CURRENT-AFFAIRS LINK

| Current-Affairs Item                                     | Static Concept It Tests                                                  | Why It Matters                                                                                 |
|----------------------------------------------------------|--------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|
| Puja Khedkar fake-disability/OBC-certificate case (2024) | UPSC's candidate-verification function and its 'watch-dog of merit' role | Tests whether the recruiting agency's verification safeguards are adequate in practice         |
| Lateral entry into the bureaucracy debate                | UPSC's recruitment mandate and the categories outside its consultation   | Tests the tension between direct appointment outside UPSC and the constitutional merit system  |
| Vacancies and delays in several State PSCs               | SPSC's constitutional design and functioning                             | Tests awareness of state-level institutional strain despite the shared constitutional template |

MAINS ANGLE

Use the Puja Khedkar case as a live example to evaluate the adequacy of UPSC's candidate-verification safeguards within its recruiting mandate.

STUDY LINK

Current Affairs -> Polity -> UPSC and SPSC

HIGH

10. UPSC Traps — Composition, Removal and Function Myths

GS-II Polity - Answer Precision

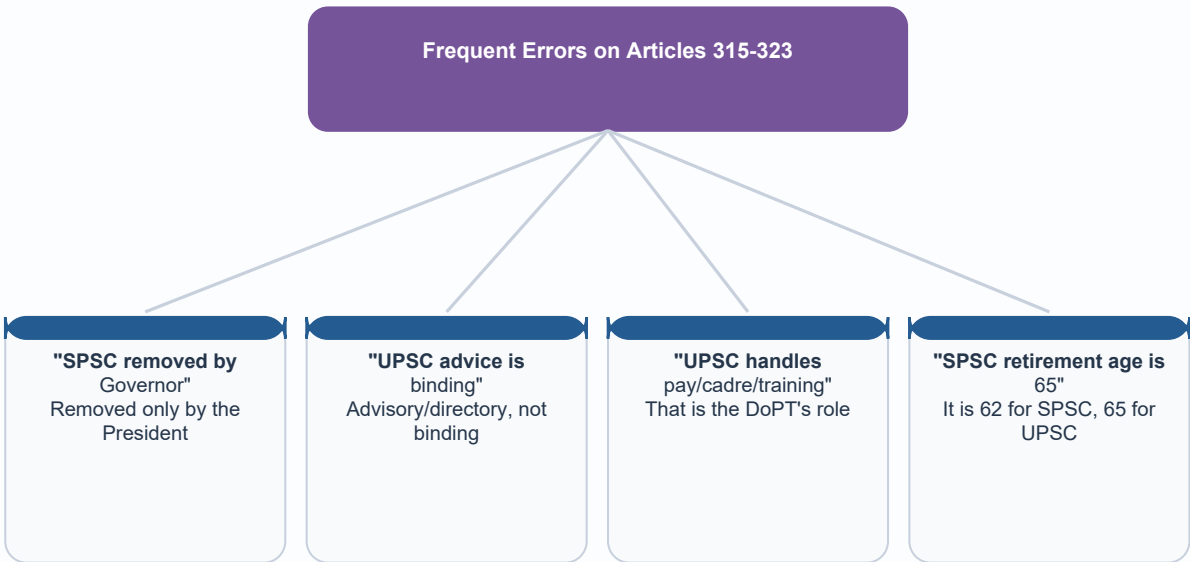
NEWS TRIGGER

Prelims and Mains both penalise the same handful of recurring confusions between the UPSC, SPSC and JSPSC.

INTRO & ORIGIN

Four errors account for most of the marks lost on this topic; each has a precise constitutional correction.

COMMON UPSC/SPSC ERRORS



KEY DATA

| Wrong statement                                         | Correct position                                          |
|---------------------------------------------------------|-----------------------------------------------------------|
| A JSPSC is a constitutional body.                       | It is created by an Act of Parliament — a statutory body. |
| The UPSC is consulted on reservations and SC/ST claims. | These matters are outside UPSC's purview.                 |

**STATIC THEORY**

- Most traps on this topic exchange the roles of the President and the Governor in the SPSC's appointment-removal split, or wrongly extend the UPSC's advisory role into a binding power.
- A safe rule: President appoints and removes UPSC members; Governor appoints, but only the President removes, SPSC members; and the JSPSC is statutory, not constitutional.

**MEMORY HOOK**

**PRESIDENT: APPOINTS & REMOVES UPSC | GOVERNOR APPOINTS, PRESIDENT REMOVES SPSC | JSPSC = STATUTORY**

**MUST-KNOW FACTS**

1. SPSC members are removed only by the President, never the Governor.
2. UPSC's advice is advisory/directory, not binding.
3. Cadre, pay and training are handled by the DoPT, not the UPSC.
4. The SPSC's retirement age is 62, not 65.

**UPSC TRAPS**

**WRONG:** A UPSC member can take any government job after the term ends.

**CORRECT:** Only a UPSC or SPSC chairmanship, nothing else.

**WRONG:** The Constitution fixes the UPSC's exact number of members.

**CORRECT:** The strength is not fixed by the Constitution.

**MAINS ANGLE**

*In objective-style Prelims answers and Mains factual recall alike, anchor every claim to the specific appointment-removal-term combination for UPSC, SPSC or JSPSC being asked about.*

**STUDY LINK**

Polity -> UPSC and SPSC -> Traps consolidation

**HIGH**

## 11. Mains Framework — Merit System, Federal Design and Reform

GS-II Mains  
Polity - Answer  
Writing

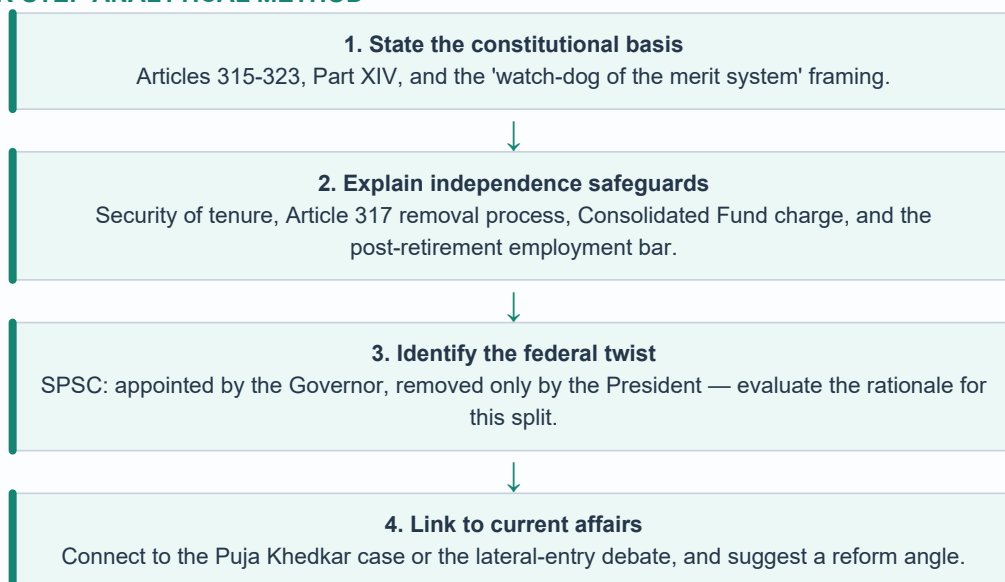
**NEWS TRIGGER**

Laxmikant's own description of the UPSC as the 'watch-dog of the merit system' is the durable examiner theme underlying nearly every Mains question on this body, from independence to reform.

**INTRO & ORIGIN**

A high-scoring answer on the UPSC or SPSC identifies the constitutional basis, explains the independence safeguards, surfaces the federal twist in the SPSC's design, and closes with a current-affairs-linked evaluation — rather than a bare listing of articles.

## THE FOUR-STEP ANALYTICAL METHOD



## STATIC THEORY

- The 'watch-dog of the merit system' description is a book-sourced framing (Laxmikant) and is the natural opening thesis for almost any UPSC-focused Mains answer.
- Because it is only a recruiting agency and not a personnel-management body, a complete answer should note the boundary with the DoPT on cadre, pay and training.
- Where a question invokes a live controversy (candidate verification, lateral entry), the conclusion should evaluate whether current safeguards are adequate, not merely restate the constitutional text.

## MEMORY HOOK

**CONSTITUTIONAL BASIS -> INDEPENDENCE SAFEGUARDS -> FEDERAL TWIST -> CURRENT-AFFAIRS EVALUATION**

## MUST-KNOW FACTS

1. The UPSC is described in the source textbook tradition as the 'watch-dog of the merit system'.
2. A complete answer on UPSC/SPSC should distinguish its recruiting role from the DoPT's personnel-management role.

## UPSC TRAPS

**WRONG:** The UPSC manages the entire personnel system of the civil services.

**CORRECT:** It only recruits; cadre, pay and training remain with the DoPT.

## MAINS ANGLE

*"The UPSC is only as strong as the merit system it guards." Examine its role and limitations, and connect the discussion to the Puja Khedkar case and the lateral-entry debate.*

## STUDY LINK

Polity -> Public Services -> Merit system and recruitment reform